

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jenzo Duque	Team: Squad #08	CCRB Case #: 201902746	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 03/20/2019 7:48 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 5/7/2021	Precinct: 41		
Date/Time CV Reported Wed, 03/20/2019 7:47 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 03/29/2019 11:16 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Carlos Jimenez	07323	911972	WARRSEC
2. DT3 Philip Badala	1127	938009	WARRSEC
3. DT3 Cesar Deleon	1816	945654	WARRSEC
4. POM Starlin Dominguez	02943	935169	WARRSEC

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Carlos Jimenez	Abuse: Police Officer Carlos Jimenez threatened to notify Administration for Children's Services.	A . Complainant Unavailable
B . DT3 Philip Badala	Force: Police Officer Philip Badala used physical force against § 87(2)(b)	B . Complainant Unavailable
C . DT3 Philip Badala	Abuse: Police Officer Philip Badala threatened to notify Administration for Children's Services.	C . Complainant Unavailable
D . DT3 Cesar Deleon	Force: Police Officer Cesar Deleon used physical force against § 87(2)(b)	D . Witness Uncooperative
E . DT3 Cesar Deleon	Abuse: Police Officer Cesar Deleon threatened to notify Administration for Children's Services.	E . Complainant Unavailable
F . POM Starlin Dominguez	Force: Police Officer Starlin Dominguez used physical force against § 87(2)(b)	F . Complainant Unavailable
G . POM Starlin Dominguez	Abuse: Police Officer Starlin Dominbuez threatened to notify Administration for Children's Services.	G . Complainant Unavailable
H . DT3 Carlos Jimenez	Force: Police Officer Carlos Jimenez used physical force against § 87(2)(b)	H . Complainant Unavailable

Case Summary

Sergeant Avlon Beazer of the 41st Pct. filed this complaint with IAB, under IAB Log #2019-11941 and on behalf of § 87(2)(b) on March 20, 2019. Included with the complaint was a mailing address, a phone number, and a date of birth.

On April 2, 2019, § 87(2)(b) was called at the phone number included with her complaint. A female respondent answered the call and asked that the caller identify themselves. Upon doing so, the call was abruptly disengaged. The same respondent then called the CCRB and requested that the investigator identify themselves. Upon doing so, the call was abruptly disengaged. On the same date, § 87(2)(b) was also sent a please call letter at the mailing address included with her complaint. A LexisNexis search and CLEAR search were then conducted for § 87(2)(b) which yielded two additional mailing addresses. On the same date, § 87(2)(b) was sent a please call letter at the two mailing addresses yielded from her database searches.

Between April 4, 2019 and April 23, 2019, § 87(2)(b) was called at the phone number included with her complaint and when possible was left a voice message requesting that she contact the CCRB. Three of the phone calls were rejected without ringing or a prompt to leave a voice message.

Between April 9, 2019 and April 16, 2019, § 87(2)(b) was sent two please call letters at the mailing address included with her complaint and the two mailing addresses yielded from her database searches.

On April 23, 2019, a Department of Corrections for New York City search and a Department of Corrections for New York State search was conducted for § 87(2)(b). As of said date, § 87(2)(b) is not currently incarcerated.

As of the writing of this report, none of the letters sent to § 87(2)(b) were returned by the United States Postal Service, and the NYPD has not confirmed whether there is body-worn camera video footage available for this incident.

§ 87(2)(g)
it is recommended that this case be closed as
Complainant Unavailable

Squad No.: _____

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date